

The Press Council Rules, 1979

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[The Press Council Rules, 1979](#)

[Published vide Notification G.S.R. 286, dated 8.2.1979.](#)

[19.](#)

[/875](#)

[In exercise of the powers conferred by section 25 of the Press Council Act, 1978 \(](#)

[37 of 1978](#)

[\), the Central Government hereby makes the following rules, namely:-](#)

[1.](#)

[Short title.](#)

[\(1\)](#)

[These rules may be called the Press Council Rules, 1979.](#)

(2)

They shall come into force on the date of their publication in the Official Gazette.

2.

Definitions.

- In these rules,-

(a)

"Act" means the Press Council Act, 1978 (37 of 1978

);

(b)

"Secretary" means the Secretary of the Council.

3.

Conditions of service of the Chairman.

(1)

The Headquarters of the Chairman shall be the same as that of the Council.

(2)

The leave admissible to the Chairman shall be as admissible to Central Government Officers under the Central Civil Services (Leave) Rules, 1972.

(3)

(i)

If a person belonging to a pensionable service is nominated as Chairman, he shall be entitled to pension and shall also subscribe to the General Provident Fund.

(ii)

If a retired person or any person other than a person belonging to a pensionable service, is nominated as Chairman he shall contribute to the Contributory Provident Fund from the date of such employment. However, the Council's contribution, with interest, shall be credited after the completion of one year's service.

(4)

The Chairman shall be entitled to travel by air on journeys performed in connection with the work of the Council or by rail by first class air-conditioned accommodation and shall be entitled to be paid traveling and daily allowance in accordance with the pay drawn by him.

(5)

The Chairman shall be his own controlling officer for the purpose of traveling allowances.

4.

[Allowances to be paid to members other than the Chairman.

[Substituted by G.S.R. 37(E) dated 27.1.1997 (w.e.f. 28.1.1997).]

(1)

A member of the Council, other than the Chairman shall, on journeys performed in connection with the work of the Council, be entitled to travel by air or by rail by first class air-conditioned accommodation by the shortest route and shall be entitled to reimbursement of single room rent and daily allowance at the following rates:-

(i)

reimbursement of rent in any State Guest House or for single room in medium range Indian Tourism Development Corporation hotels or State Government run Tourist hotel/hotels or residential accommodation provided by registered societies;

(ii)

room rent for stay in private lodges/hotels will continue to be allowed up to the limits specified from time to time;

(iii)

daily allowance at the rate of 90% of ordinary rates of daily allowance as admissible to officers in the pay range of Rs. 5,100 and above for boarding purpose;]

(iv)

[In addition to the reimbursement of rent and daily allowances referred to in clauses (i), (ii) and (iii), every non-official member shall be entitled to a sitting fee of rupees six thousand per day, subject to a ceiling of rupees sixty thousand per

month:

[Substituted 'In addition to the above, the non-official members shall be entitled to a sitting fee of Rs. 1,000/- per day, subject to a ceiling of Rs. 10,000/- per month and further subject to the condition that such non-official members shall not be employed in any institution or organization funded by the Government and drawing salary from such institution or organization.' by Notification No. G.S.R. 43(E), dated 18.1.2018 (w.e.f. 8.2.1979).]

Provided that no such non-official member employed in any institution or organisation funded by the Government and drawing salary therefrom shall be entitled to sitting fee.]

(2)

[Those members of the Council who attend the work of the Council locally, shall be entitled to conveyance charges on actual basis subject to a ceiling of Rs. 800/- per day.]

[Substituted 'Those members of the Council who attend the work of the Council locally, shall be entitled to actual conveyance subject to a ceiling of Rs. 100 per day in 'A' and 'B-1' class cities and Rs. 75 per day in other cities.' by Notification No. G.S.R. 377(E), dated 30.3.2016 (w.e.f. 8.2.1979).]

5.

Method of recruitment.

(1)

Recruitment to the posts under the Council may be made by adopting any of the following methods, namely:-

(a)

by direct recruitment by advertising the post:

Provided that in respect of posts corresponding to Groups "C" and "D" posts under the Central Government the recruitment shall be made through the Employment Exchange; or

(b)

by promotion; or

(c)

by deputation or transfer of persons employed in Government Offices or bodies whether incorporated or not, wholly or substantially owned or controlled by Government:

Provided that the regular officers and employees of the erstwhile Press Council of India which was dissolved with effect from January 1, 1976 may also be absorbed in the Secretariat of the first Council.

(2)

The Council shall constitute such Selection Committees as may be considered necessary for the purpose of recommending suitable candidates for the posts.

(3)

The Council may make appointments to the posts taking into account the recommendations of the Selection Committees:

Provided that if a vacancy is required to be filled urgently the Chairman may make a temporary appointment in any post on ad hoc basis for a period not exceeding six months, so, however, that every appointment so made, shall be reported to the Council before the expiry of that period for its approval; and, where in a case any appointment so made is not approved by the Council, the person so appointed shall cease to hold the post from such date as the Council may specify in that behalf.

6.

Reservation of posts for Scheduled Castes and Scheduled Tribes.

- The Council shall, except in the case of the officers requiring special qualifications to be decided by the Council with the previous approval of the Central Government, observe the rules relating to reservation of posts for the Scheduled Castes and the Scheduled Tribes as laid down by the Central Government from time to time in this behalf.

7.

Production of medical certificate and verification of character and antecedents.

- Recruitment to all posts under the Council shall normally be made subject to the production of a medical certificate of physical fitness in accordance with such standards as may be laid down for posts of corresponding status under the Central Government and after due verification of the character and antecedents of the persons concerned.

8.

Terms and conditions of service.

- Until the Council makes regulations in this behalf, the terms and conditions of service governing the employees of the Central Government and the rights and privileges enjoyed by them shall, so far as may be, apply to the employees of the Council, provided that the employees of the Council shall be entitled to subscribe to the Contributory Provident Fund (India) with effect from the date of appointment in the Council in accordance with the orders issued by the Ministry of Finance on the subject from time to time.

[8-A.

[Substituted by G.S.R. 60(E), dated 24.1.2000 (w.e.f. 24.1.2000).]

(1)

All proposals relating to emolument structure including adoption of pay scales, allowances, and revision of pay scales, allowances and revision thereof, and creation of posts where the maximum of pay scale exceeds Rs. 15,200 p.m. shall be made only with prior approval of the Central Government.

(2)

An employee shall retire from the service of the council after attaining the age of 60 years.]

9.

Annual Report.

- The Annual Report required to be prepared under section 20 of the Act shall be prepared by the Council within four months from the expiry of the year to which it relates.

Explanation .-For purpose of this rule the "year" means "calender year".

10.

Levy of Fees.

- [(1) The Council may, for the purpose of performing its functions under the Act, levy and collect fees from registered newspapers and news agencies during each financial year as specified below:

(a)

registered newspapers and periodicals with a circulation range above 5,00,000 -

(i)

Rs. 25,000/- per annum from each daily;

(ii)

Rs. 15,000/- per annum from each bi-weekly or weekly;

(iii)

Rs. 10,000/- per annum from all other categories;

(b)

registered newspapers and periodicals with a circulation range of above 2,50,000 and upto 5,00,000 -

(i)

Rs. 18,000/- per annum from each daily;

(ii)

Rs. 10,000/- per annum from each bi-weekly or weekly;

(iii)

Rs. 7,500/- per annum from each fortnightly or monthly;

(iv)

Rs. 4,000/- per annum from all other categories;

(c)

registered newspapers and periodicals with a circulation range of above 1,50,000 and upto 2,50,000 -

(i)

Rs. 12,000/- per annum from each daily;

(ii)

Rs. 8,000/- per annum from each bi-weekly or weekly;

(iii)

Rs. 6,000/- per annum from each fortnightly or monthly;

(iv)

Rs. 3,000/- per annum from all other categories;

(d)

registered newspapers and periodicals with a circulation range of above 75,000 and upto 1,50,000 -

(i)

Rs. 10,000/- per annum from each daily;

(ii)

Rs. 7,000/- per annum from each bi-weekly or weekly;

(iii)

Rs. 5,000/- per annum from each fortnightly or monthly;

(iv)

Rs. 2,500/- per annum from all other categories;

(e)

registered newspapers and periodicals with a circulation range of above 25,000 and upto 75,000 -

(i)

Rs. 6,000/- per annum from each daily;

(ii)

Rs. 4,000/- per annum from each bi-weekly or weekly;

(iii)

Rs. 3,000/- per annum from each fortnightly or monthly;

(iv)

Rs. 2,000/- per annum from all other categories;

(f)

Rs. 25,000/- per annum from each Class-I news agency;

(g)

Rs. 15,000/- per annum from Class II news agency;

(h)

Rs. 10,000/- per annum from all other news agencies.

Explanation. - For the purpose of this rule, the circulation range of registered newspapers and periodicals shall be the latest circulation figures as available with the Registrar of Newspapers for India and the criteria for classification of news agencies shall be such as indicated in the Report of the Wage Board for Working Journalists.]

[Substituted by Notification No. G.S.R. 466 (E), dated 28.4.2016 (w.e.f. 8.1.1979).]

(2)

The Council shall send during the course of every financial year notices of demand under registered A.D. covers to registered newspapers and news agencies calling for the remittance to it of the fees as indicated in sub-rule (1) and such registered newspapers and news agencies shall remit the amount of fees so demanded within thirty days of the receipt of such notices by means of Demand Drafts payable to the Council.

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